

Court No. - 21

Case :- WRIT - C No. - 8797 of 2023

Petitioner :- Smt. Badami Devi

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Kamal Kumar Singh

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Sri Chetan Chatterjee, learned counsel for the respondent Electricity Department, prays for grant of time to obtain instructions.

List as fresh on 5.4.2023.

In the meantime, no coercive measure will be taken against the petitioner.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 21.3.2023

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The petitioner has challenged the recovery citation/writ of demand dated 10.10.2022 issued by respondent no.3 for recovery of electricity dues in a case of theft of electricity.

Learned counsel for the respondent-Electricity Department states that the impugned recovery has been withdrawn and that fresh order will be passed following the procedure prescribed under the U.P. Electricity Supply Code, 2005.

Accordingly, the petition is **disposed of** with the aforesaid liberty to the respondents.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 5.4.2023

Shivangi